

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

11. ANTHONY TATUM V. PETRINA TATUM

23FL1230

On March 12, 2026, Respondent filed a Request for Order (RFO) seeking child custody orders. The RFO was served on May 11th however the Notice of Tentative Ruling was not served nor was the required blank FL-320.

Minor's Counsel filed and served a Responsive Declaration to Request for Order on May 14th.

On May 22nd, Petitioner filed and served a Responsive Declaration to Request for Order, an Income and Expense Declaration, and Attorney Amanda D. Yasbek's Declaration.

Respondent is requesting immediate implementation of a phased plan progressing toward equal shared custody. She further requests a holiday and vacation schedule, removal of the no-contact order, reunification therapy and/or co-counseling, and "father to be held accountable for non-compliance with prior orders."

Minor's Counsel asks the court to maintain the prior orders as there has been no showing of a substantial change in circumstances that would warrant the requested changes. She expressly requests the court's continued suspension of all visits between Respondent and the minor and all forms of communication between Respondent and the minor. She further asks the court to re-affirm its prior order that Respondent submit reliable documentation of her compliance with the court's prior orders prior to filing any future request to change custody.

Petitioner also asks the court to deny the RFO in its entirety. He further requests \$2,000 in sanctions pursuant to Family Code § 271 and \$3,000 in attorney fees pursuant to Family Code § 2032. Finally, he asks that the court admonish Respondent that continued harassment and misuse of the litigation process may result in additional sanctions or further remedial action by the court.

After reviewing the filings as outlined above the court finds that its orders of March 12, 2026 remain in the minor's best interests. All prior orders remain in full force and effect. This includes, but is not limited to, the following orders: "[t]he court does find it to be in the best interests of the minor to suspend the visits between her and Respondent. Respondent is ordered to enroll in, attend, and fully engage in parenting coaching sessions with a licensed, skilled, and experienced mental health professional, either Joel Walton, MFT or Josh Collver, LCSW. She is further ordered to complete and engage in anger management and individual therapy. Respondent is ordered to provide Petitioner, his attorney, and

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Minor's Counsel with written documentation of her compliance with this order." Tent. Ruling, March 12, 2026. Such documentation must be reliable professional documentation including, but not limited to, therapist reports, treatment progress updates, or signed notes from the provider. Respondent is admonished that continued harassment, misuse of the litigation process, and noncompliance with court orders may result in additional sanctions, or a finding of contempt with related contempt penalties.

Turning to the requests for attorney's fees and sanctions, the public policy of Family Code section 2030 is to provide "parity between spouses in their ability to obtain effective legal representation." In Re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. Alan S. v Superior Court, 172 Cal. App. 4th 238,251(2009). In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2).

Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. "In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately." *Id.* at (b). Financial resources are only one factor to be considered though. *Id.* In addition to the parties' financial resources, the court may consider the parties' trial tactics. In Re Marriage of Falcone & Fyke, 203 Cal. App. 4th 964; 975 (2012).

Trial tactics of a party are also to be considered in ruling on a request for sanctions pursuant to Family Code § 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an "unreasonable financial burden on the party against whom the sanction is imposed." *Id.*

Here, the court has reviewed Petitioner's Income and Expense Declaration, Petitioner's estimate of Respondent's monthly income and Respondent's most recently filed Income and Expense Declaration dated January 16, 2025. While there is a significant

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disparity in income, the court is concerned with Respondent's ability to pay the entirety of the requested \$5,000 given her significant monthly debt payments amounting to over \$8,000 per month. For that reason, an award of attorney's fees pursuant to Family Code § 2032 is denied. That said, the court is ordering Respondent to pay Petitioner's counsel \$2,500 as and for sanctions pursuant to Family Code § 271. The court finds this to be a reasonable amount to cover attorney's fees related solely to the present RFO and does not find the amount to be unduly burdensome. The amount may be paid in one lump sum or in monthly increments of \$250 commencing on June 15th and continuing on the 15th of each month until paid in full (approximately 10 months). If any payment is missed or late the entire amount shall become immediately due and payable.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT FINDS THAT ITS ORDERS OF MARCH 12, 2026 REMAIN IN THE MINOR'S BEST INTERESTS. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. THIS INCLUDES, BUT IS NOT LIMITED TO, THE FOLLOWING ORDERS: "[T]HE COURT DOES FIND IT TO BE IN THE BEST INTERESTS OF THE MINOR TO SUSPEND THE VISITS BETWEEN HER AND RESPONDENT. RESPONDENT IS ORDERED TO ENROLL IN, ATTEND, AND FULLY ENGAGE IN PARENTING COACHING SESSIONS WITH A LICENSED, SKILLED, AND EXPERIENCED MENTAL HEALTH PROFESSIONAL, EITHER JOEL WALTON, MFT OR JOSH COLLVER, LCSW. SHE IS FURTHER ORDERED TO COMPLETE AND ENGAGE IN ANGER MANAGEMENT AND INDIVIDUAL THERAPY. RESPONDENT IS ORDERED TO PROVIDE PETITIONER, HIS ATTORNEY, AND MINOR'S COUNSEL WITH WRITTEN DOCUMENTATION OF HER COMPLIANCE WITH THIS ORDER." TENT. RULING, MARCH 12, 2026. SUCH DOCUMENTATION MUST BE RELIABLE PROFESSIONAL DOCUMENTATION INCLUDING, BUT NOT LIMITED TO, THERAPIST REPORTS, TREATMENT PROGRESS UPDATES, OR SIGNED NOTES FROM THE PROVIDER. RESPONDENT IS ADMONISHED THAT CONTINUED HARASSMENT, MISUSE OF THE LITIGATION PROCESS, AND NONCOMPLIANCE WITH COURT ORDERS MAY RESULT IN ADDITIONAL SANCTIONS, OR A FINDING OF CONTEMPT WITH RELATED CONTEMPT PENALTIES.

AN AWARD OF ATTORNEY'S FEES PURSUANT TO FAMILY CODE § 2032 IS DENIED. THAT SAID, THE COURT IS ORDERING RESPONDENT TO PAY PETITIONER'S COUNSEL \$2,500 AS AND FOR SANCTIONS PURSUANT TO FAMILY CODE § 271. THE AMOUNT MAY

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BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$250 COMMENCING ON JUNE 15TH AND CONTINUING ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 10 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. JACINTA LASHAE BADELITA V. BOGDANEL BADELITA

22FL0797

On January 22, 2026, Respondent filed a Request for Order (RFO) seeking orders to travel to Romania. It was served the same day; however, Respondent did not serve the requisite blank FL-320 or the Notice of Tentative Ruling as required.

Parties appeared for the hearing on April 9, 2026, at which time Respondent requested the matter be continued to allow additional time to perfect service.

Upon review of the court file, there is no new Proof of Service showing Petitioner was properly served.

This matter is dropped from calendar due to lack of proper service.

TENTATIVE RULING #12: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.